



Teachers' Superannuation Act 1965

1965 CHAPTER 83

An Act to amend the law relating to the superannuation and other benefits payable to or in respect of teachers and certain other persons employed in connection with the provision of educational services, and for purposes connected therewith. [22nd December 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Secretary of State may, with the consent of the Teachers' Treasury, make provision by regulations as to the superannua-^{superannuation} tion benefits payable to or in respect of teachers who are or have been employed in reckonable service; and such regulations are in this Act referred to as "superannuation regulations".

(2) Without prejudice to the generality of the power to make superannuation regulations, any such regulations—

- (a) shall include regulations to give effect to the provisions specified in Part I of Schedule 1 to this Act,
- (b) may include regulations to give effect to the provisions specified in Part II of that Schedule, and
- (c) may contain such incidental, supplementary and consequential provisions as appear to the Secretary of State to be necessary or expedient, including provision requiring the giving of information and the production of documents.

(3) Before making any superannuation regulations, the Secretary of State shall consult with representatives of local education authorities and of teachers appearing to him to be likely to be affected by the proposed regulations.

(4) The power to make superannuation regulations shall be exercisable by statutory instrument; and any statutory instrument containing such regulations shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Provisions consequential on coming into force of superannuation regulations.

1925 c. 59.

1956 c. 53.

2.—(1) Subject to the following provisions of this section, on the appointed day—

- (a) the provisions of the Teachers (Superannuation) Act 1925 specified in Part I of Schedule 2 to this Act shall have effect subject to the amendments set out in that Part of that Schedule;
- (b) the provisions of the Teachers (Superannuation) Act 1956 specified in Part II of that Schedule shall have effect subject to the amendments set out in that Part of that Schedule;
- (c) such provisions of the enactments specified in Part II of Schedule 3 to this Act as are specified in column 3 of that Schedule shall cease to have effect;
- (d) any scheme under section 21 of the Teachers (Superannuation) Act 1925 which is in force immediately before the appointed day shall cease to have effect; and
- (e) any rules which are in force immediately before the appointed day and were made under any of the provisions referred to in paragraph (c) of this subsection shall cease to have effect.

(2) Nothing in this section or in any superannuation regulations shall affect the operation of any provision of the Teachers (Superannuation) Acts 1918 to 1956, of any such scheme as is referred to in paragraph (d), or of any such rules as are referred to in paragraph (e), of the preceding subsection, in relation to—

- (a) any annual allowance which began to accrue under those Acts or under any such scheme before the passing of this Act or which begins to accrue after the passing of this Act but before the appointed day;
- (b) any additional allowance or gratuity which became payable under those Acts or under any such scheme before the passing of this Act or which becomes payable after the passing of this Act but before the appointed day; or
- (c) any liability to pay contributions in respect of the person to or in respect of whom any such allowance or gratuity is or was granted.

Pensions for widows, widowers, children and dependants.

3.—(1) Without prejudice to the generality of the power to make superannuation regulations, such regulations may make provision for the payment of pensions of such amounts, in such cases and subject to such conditions as may be prescribed, to or in respect of the widows or widowers and the children

or other dependants of teachers who die after the passing of this Act.

(2) Regulations making any such provision as is referred to in the preceding subsection shall—

- (a) require the payment to the Secretary of State, in such cases as may be prescribed, of contributions by teachers of such amounts as may be determined in accordance with the regulations ;
- (b) in such cases as may be prescribed, require the payment to the Secretary of State of a single contribution, by or in respect of a teacher, of such amount as may be determined in accordance with the regulations, and, except where the regulations otherwise provide, require any such payment to be made by the surrender of the whole or a proportion of an additional allowance or gratuity payable to or in respect of that teacher, or of any sum payable to or in respect of him by way of return of superannuation contributions ;
- (c) provide for the repayment to a teacher or his personal representatives, in such cases and on such conditions as may be prescribed, of contributions paid by him as mentioned in paragraph (a) of this subsection, and for determining the method by which the amount to be repaid in respect of those contributions and of interest thereon is to be ascertained ;
- (d) provide for the establishment of a fund out of which shall be paid the pensions referred to in the preceding subsection and any sums required to be repaid as mentioned in the last preceding paragraph and into which shall be paid all contributions received by the Secretary of State as mentioned in paragraph (a) or paragraph (b) of this subsection ;
- (e) provide for the establishment of a board of management to undertake the management of the fund and to exercise such other powers and functions in relation to the pensions referred to in the preceding subsection as may be determined in accordance with the regulations ; and
- (f) provide for the payment of the administrative expenses of the board of management by the Secretary of State and the payment by him, to the members of the board, of such travelling, subsistence and other allowances as he may, with the consent of the Treasury, determine.

(3) Regulations making any such provision as is referred to in subsection (1) of this section may provide that, in such cases as may be prescribed,—

- (a) where a teacher ceases to be employed in reckonable service and takes up other employment in relation to which provision is made for payments to be made

to or for the benefit of the dependants of persons engaged in that employment, then, for the purpose of enabling some or all of the teacher's employment in reckonable service to be taken into account in determining the amount of any such payment which may become payable to or in respect of his dependants, there may be paid, out of the fund established in accordance with subsection (2)(d) of this section, such sum as may be determined in accordance with the regulations; and

(b) where a person who has been engaged in employment in relation to which provision is made as mentioned in the preceding paragraph becomes employed in reckonable service, there may be paid into the fund established in accordance with subsection (2)(d) of this section a payment in respect of some or all of his previous employment.

(4) Regulations making any such provision as is referred to in subsection (1) of this section—

(a) may confer on the Government Actuary or on the Deputy Government Actuary such functions as may be prescribed in relation to the valuation of the assets and liabilities of the fund established in accordance with subsection (2)(d) of this section and in relation to the determination of the amount of any contribution payable by a teacher under the regulations;

(b) may be made so as to come into force, notwithstanding anything in section 1 of this Act, before the regulations making the provisions referred to in Part I of Schedule 1 to this Act; and

(c) without prejudice to section 1(2)(c) of this Act may contain such transitional provisions as appear to the Secretary of State to be necessary or expedient to deal with the case of teachers who die after the passing of this Act but before the coming into force of the regulations.

(5) The reference in subsection (2)(b) of this section to an additional allowance or gratuity is a reference to such an allowance or gratuity payable under the Teachers (Superannuation) Acts 1918 to 1956, under any scheme made under section 21 of the Teachers (Superannuation) Act 1925 or under superannuation regulations.

1925 c. 59.

Amendment
of Teachers
(Superannua-
tion) Act
1937, s. 2.
1937 c. 47.

4.—(1) Subject to the following provisions of this section, in subsection (2) of section 2 of the Teachers (Superannuation) Act 1937 (which provides that where, with the consent of the Secretary of State, a teacher pays superannuation contributions during an interval in his contributory service, the contributions

shall be assessed on the basis of his full salary before the discontinuance) for the words "his full salary in respect of his contributory service" there shall be substituted the words "the salary which, in the opinion of the Secretary of State, he would have received had he continued to be employed in contributory service consisting of the same or similar employment to that in which he was employed".

(2) The preceding subsection shall not apply in relation to a teacher to or in respect of whom—

(a) any annual allowance began to accrue before 10th November 1965 under the Teachers (Superannuation) Acts 1918 to 1956; or

(b) any gratuity became payable before that date under those Acts.

(3) Subject to the last preceding subsection, subsection (1) of this section shall not apply in relation to any teacher in whose case the Secretary of State has, before the passing of this Act, consented to the payment of superannuation contributions, unless the teacher elects, by giving notice in writing to the Secretary of State, that it shall so apply.

(4) In a notice of election under the last preceding subsection, a teacher may specify a date, not later than the passing of this Act and not earlier than 1st January 1962, from which the election is to take effect; and where a teacher specifies such a date, then, in relation to him, the amendment effected by subsection (1) of this section—

(a) shall not have effect in relation to any part of a period of absence which falls before that date, but

(b) shall have effect in relation to the remainder of any period of absence which began before that date and in relation to the whole of any period of absence which began on or after that date.

(5) If a teacher does not specify a date in a notice of election under subsection (3) of this section, then, in relation to him, the amendment effected by subsection (1) of this section shall have effect in relation to any period of absence beginning on or after 1st January 1962 and in relation to so much of any period of absence which began before that date as does not fall before that date.

(6) In this section "period of absence" means such a period of absence as is referred to in section 2(1) of the Teachers (Superannuation) Act 1937.

1937 c. 47.

5.—(1) Any person who by means of any false representation, statement or document which he knows to be false, or by personation or other fraudulent means, obtains or attempts to obtain, for himself or any other person, any benefit or payment to which this section applies, shall be liable on conviction on

Offences relating to obtaining superannuation benefits, etc.

indictment to imprisonment for a term not exceeding two years or to a fine or both and on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds or both.

(2) The reference in subsection (1) of this section to obtaining a benefit or payment to which this section applies includes a reference to obtaining any increase in, or any sum in respect of, such a benefit or payment.

(3) Any reference in this section to a benefit to which this section applies is a reference to any allowance, gratuity or pension payable under superannuation regulations or under or by virtue of any provision of the Teachers (Superannuation) Acts 1918 to 1956 which is repealed by this Act; and any reference in this section to a payment to which this section applies is a reference to the payment of any sum by way of return of contributions.

Financial provisions.

6.—(1) Except as provided by subsection (3) of this section, any sums received by the Secretary of State by virtue of any provision of this Act or of superannuation regulations shall be paid into the Exchequer.

(2) Except as provided by the next following subsection, there shall be paid out of moneys provided by Parliament any expenses incurred by the Secretary of State in the payment—

(a) of any allowance, gratuity or other sum which is payable to or in respect of a teacher or any other person in consequence of any provision of this Act or of superannuation regulations, and

(b) of any such expenses or allowances as are referred to in paragraph (f) of section 3(2) of this Act.

(3) Subsection (1) of this section shall not apply to any contributions received by the Secretary of State which, in accordance with superannuation regulations making the provisions referred to in subsection (2) of section 3 of this Act, are required to be paid into the fund established in accordance with paragraph (d) of that subsection; and the last preceding subsection shall not apply to expenses incurred in the payment of any pensions or other sums referred to in that paragraph which, by virtue of any such superannuation regulations, are required to be paid out of that fund.

(4) There shall be paid out of moneys provided by Parliament—

(a) any administrative expenses incurred by the Secretary of State in consequence of any provision of this Act or of superannuation regulations,

(b) any increase attributable to any such provision in the sums payable out of moneys so provided under any other enactment.

7.—(1) In this Act—

Interpretation.

“the appointed day” means such day as may be appointed for the purposes of section 2 of this Act by superannuation regulations ;

“prescribed” means prescribed by superannuation regulations ; and

“superannuation regulations” has the meaning assigned to it by section 1(1) of this Act.

(2) In this Act “contributory service” has the same meaning as it has, immediately before the passing of this Act, for the purposes of the Teachers (Superannuation) Acts 1918 to 1956 ; and, notwithstanding the repeal of any enactment specified in Schedule 3 to this Act, in any enactment in force immediately after the appointed day “recognised service” and “contributory service” have the same meanings on and after that day as they had immediately before it.

(3) Except where the context otherwise requires, any reference in this Act to contributions is a reference to contributions under—

(a) section 9 of the Teachers (Superannuation) Act 1925, 1925 c. 59.

(b) any provision of the Teachers (Superannuation) Acts 1918 to 1956 repealed by this Act, and

(c) any provision of superannuation regulations ;

and “superannuation contributions” means all contributions other than those which, by virtue of superannuation regulations making the provisions referred to in subsection (2) of section 3 of this Act, are required to be paid into the fund established in accordance with paragraph (d) of that subsection.

(4) References in this Act to any enactment shall, except where the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment, including this Act.

8.—(1) Subject to the next following subsection, the enactments specified in Schedule 3 to this Act are hereby repealed to the extent specified in column 3 of that Schedule—

Repeals.

(a) in the case of the enactments specified in Part I of that Schedule, as from the passing of this Act ; and

(b) in the case of the enactments specified in Part II of that Schedule, as from the appointed day.

(2) The repeal of the enactments specified in Part II of Schedule 3 to this Act shall have effect subject to subsection (2) of section 2 of this Act as if the repeal were contained in that section.

9.—(1) This Act may be cited as the Teachers' Superannuation Act 1965.

Short title and extent.

(2) This Act shall not extend to Scotland or to Northern Ireland.

SCHEDULES

Section 1.

SCHEDULE 1

SUPERANNUATION REGULATIONS

PART I

PROVISIONS TO BE INCLUDED IN SUPERANNUATION REGULATIONS

1.—(1) Provision for the payment of allowances, in accordance with the following provisions of this paragraph, to any teacher who has ceased to be employed in reckonable service and who—

- (a) has attained the prescribed age, or
- (b) before attaining the prescribed age, has become, in the opinion of the Secretary of State, permanently incapable through infirmity of mind or body of serving efficiently as a teacher in reckonable service.

(2) Subject to the following provisions of this paragraph, the allowances referred to in the preceding sub-paragraph shall be—

- (a) an annual allowance during life not exceeding an amount calculated by reference to the period of the teacher's reckonable service at the rate of one-eightieth of his average salary for one year of reckonable service ; and
- (b) by way of additional allowance, a lump sum not exceeding an amount calculated by reference to that period at the rate of three-eightieths of his average salary for one year of reckonable service ;

but no allowance shall be paid to a teacher under this paragraph unless he fulfils any requirements prescribed in relation to that allowance by virtue of paragraph 5 of this Schedule.

(3) In determining, for the purposes of the last preceding sub-paragraph, the period of a teacher's reckonable service, no account shall be taken—

- (a) of more than forty-five years of reckonable service, or
- (b) of more than forty years of reckonable service served before the teacher attained the age of sixty.

(4) In calculating the amount of any additional allowance payable to a teacher whose reckonable service includes service before 1st October 1956—

- (a) sub-paragraph (2)(b) of this paragraph shall have effect as if, in relation to so much of his period of reckonable service as ends before that date, for the words "three-eightieths" there were substituted the words "one-thirtieth" ;
- (b) any service to be disregarded by virtue of sub-paragraph (3)(a) of this paragraph shall be taken from the beginning of his period of reckonable service ; and
- (c) sub-paragraph (3)(b) of this paragraph shall be omitted, but the amount of the additional allowance, so far as attributable to service before the age of sixty, shall not exceed one and a half times his average salary.

(5) Where a teacher becomes entitled to allowances under this paragraph in a case falling within sub-paragraph (1)(b) thereof, then if the teacher—

(a) is under the age of sixty-five when he becomes so entitled, and

(b) has not then completed twenty years of reckonable service, those allowances shall be calculated as if the teacher had completed such period of reckonable service, not exceeding twenty years, as may be prescribed.

(6) For the purposes of sub-paragraph (4)(a) of this paragraph, any additional period of service which, under the last preceding sub-paragraph, a teacher is to be treated as having served shall be deemed to have been a continuous period ending immediately before the commencement of the teacher's actual service.

(7) The age prescribed for cases falling within sub-paragraph (1)(b) of this paragraph may be different from that prescribed for cases falling within sub-paragraph (1)(a) thereof.

2. Provision for determining, for the purposes of this Act, of any provision of the Teachers (Superannuation) Acts 1918 to 1956 which remains unrepealed after the appointed day and of superannuation regulations,—

(a) what service is to be considered as reckonable service, and

(b) what part of any sums paid to teachers in respect of their employment in such service is to be treated as emoluments.

3.—(1) Provision for the payment of gratuities to teachers to whom this paragraph applies who have ceased to be employed in reckonable service and, before attaining the age of seventy, have become, in the opinion of the Secretary of State, incapable through infirmity of mind or body of serving efficiently as teachers in reckonable service.

(2) This paragraph applies to teachers who are not entitled to the allowances referred to in paragraph 1 of this Schedule but who fulfil any requirements prescribed in relation to gratuities under this paragraph by virtue of paragraph 5 of this Schedule.

4. Provision for the payment of gratuities to the personal representatives of teachers who die while still employed in reckonable service but after fulfilling any requirements prescribed in relation to gratuities under this paragraph by virtue of paragraph 5 of this Schedule.

5. Provision prescribing the period of reckonable service which must be completed and any other requirements which must be fulfilled to entitle a teacher to any allowance or gratuity referred to in this Part of this Schedule.

6.—(1) Provision for the repayment to a teacher or his personal representatives, in such cases to which this paragraph applies and on such conditions as may be prescribed, of superannuation contributions paid by him, and for determining the method by which the amount to be repaid in respect of those contributions and of interest thereon is to be ascertained.

(2) This paragraph applies to cases where a teacher has ceased to be employed in reckonable service without any allowance or gratuity under superannuation regulations becoming payable to or in respect of him.

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PART II

PROVISIONS WHICH MAY BE INCLUDED IN SUPERANNUATION REGULATIONS

7.—(1) Provision whereby, subject to any modifications or exceptions which may be specified in the regulations, such provisions of the Teachers (Superannuation) Act 1925 and the Teachers (Superannuation) Act 1956 which remain unrepealed after the appointed day, and such provisions of superannuation regulations, as may be prescribed shall apply in relation to such teachers or other persons to whom this paragraph applies as may be prescribed.

1925 c. 59.
1956 c. 53.

(2) This paragraph applies—

(a) to persons who are not teachers but who are engaged in employment which involves the performance of duties in connection with the provision of education or of services ancillary to education, and

(b) to teachers who are not for the time being engaged in reckonable service but who are employed in the capacity of teachers or in some other capacity connected with education which to a substantial extent involves the control or supervision of teachers—

1944 c. 31.

(i) in independent schools, within the meaning of the Education Act 1944, or

(ii) in the employment of a government department, or

(iii) in an institution provided by a government department, or

1965 c. 74.

(iv) in the naval, military or air forces of the Crown or any of the women's services mentioned in Schedule 4 to the Superannuation Act 1965, or

(v) in the employment of such person or body of persons, or in such institution as may be prescribed for the purposes of this paragraph.

8. Provision enabling a teacher whose employment in reckonable service is discontinued for a period, not exceeding such maximum period as may be determined in accordance with the regulations to be appropriate in his case, to pay contributions in respect of that period of such amounts as may be so determined, and provision for treating any period during which such contributions are paid as a period of reckonable service for the purposes of such provisions of the enactments referred to in paragraph 7(1) of this Schedule and of superannuation regulations as may be prescribed.

9. Provision for securing that no contributions are payable in respect of a teacher for any period after he has completed forty-five years' service of a prescribed description, and for determining the period by reference to which the average salary of a teacher who has completed such a period of service is to be calculated.

10. Provision enabling a teacher who is for the time being in receipt of a smaller salary than that in respect of which he has previously paid contributions to elect to be treated, for the purposes of any obligation to pay contributions and any entitlement to superannuation benefits, as if he were in receipt of a larger salary than his salary for the time being.

11.—(1) Provision for securing that, notwithstanding anything in any enactment, where (apart from any provision made under this paragraph) any person would be liable to pay superannuation contributions and would also be subject to a superannuation scheme to which this paragraph applies, then, according to the provisions of the regulations applicable to him,—

- (a) he shall not be liable to pay any superannuation contributions or entitled to receive any benefit under superannuation regulations, or
- (b) he shall not be subject to that scheme, or
- (c) he shall be entitled to elect, in accordance with the regulations, whether he will be subject to the scheme or will be liable to pay superannuation contributions and entitled to receive benefits under superannuation regulations.

(2) Any reference in the preceding sub-paragraph to a superannuation scheme to which this paragraph applies is a reference—

- (a) to any superannuation scheme (including a scheme established by or under any enactment or under a provisional order confirmed by Parliament) other than the scheme established by the enactments referred to in paragraph 7(1) of this Schedule and by superannuation regulations, being a scheme which provides for the payment of contributions by any local authority or the persons responsible for the management of any educational establishment and for the payment, in respect of service rendered to the authority or to those persons, of benefits on disablement, retirement, attainment of any specified age or death, and
- (b) to any system of superannuation (not being a system established by or under any enactment or under any provisional order confirmed by Parliament) operated jointly by a number of educational establishments for the purpose of providing any such benefits in respect of the service of persons employed by them.

12. Provision whereby, in their application to teachers who are not full-time teachers, the provisions of the enactments referred to in paragraph 7(1) of this Schedule and of superannuation regulations shall have effect subject to such modifications and exceptions as may be specified in the regulations.

13. Provision whereby, in such cases as may be prescribed, sums payable by teachers in respect of contributions shall be deducted from their salaries by their employers or, in the case of teachers whose remuneration is payable by persons other than their employers, by those persons, and in such cases as may be prescribed, provision for the collection of sums so deducted and of employers' contributions by deduction from grants payable out of moneys provided by Parliament.

14. Provision authorising the payment, without probate or other proof of title, of any sum due under the regulations in respect of a teacher or any other person who has died, to his personal representatives or such other persons as may be prescribed.

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15. Provision rendering void any assignment of or charge on, or any agreement to assign or charge, any allowance, gratuity, pension or other benefit payable under the regulations, and provision that, on the bankruptcy of a person entitled to such an allowance, gratuity, pension or other benefit, no part of the allowance, gratuity, pension or benefit shall pass to any trustee or other person acting on behalf of the creditors except in accordance with an order made by a court in pursuance of any enactment specified in the regulations.

16.—(1) Provision for reducing the amount of any allowance or gratuity payable under the regulations to or in respect of a teacher in such cases to which this paragraph applies as may be prescribed.

(2) This paragraph applies to any case where a period of reckonable service counts towards a superannuation benefit payable otherwise than under superannuation regulations as well as an allowance or gratuity payable under those regulations.

17. Provision for reducing or suspending allowances payable to or in respect of teachers who take up employment after retirement.

18. Provision for suspending or ending allowances payable to teachers who have ceased to be employed in reckonable service by reason of infirmity, if they recover from their infirmity.

19. Provision for withholding, or reducing the amount of, any allowance or gratuity payable under the regulations to or in respect of a teacher who has been dismissed or otherwise ceased to serve as a teacher in consequence of grave misconduct or has been guilty of such misconduct as may be determined in accordance with the regulations to have accelerated his death or retirement, and, in such cases as may be so determined, for granting any allowance or gratuity which has been so withheld or paying in full the amount of any allowance or gratuity which has been so reduced.

20. Provision for the reference of questions arising under the regulations to the Secretary of State and provision that his decision on any question so referred shall be final.

21. Provision extending, in any case specified in the regulations,—

(a) any reference in any enactment to recognised service or contributory service so as to include a reference to reckonable service ; and

(b) any reference in any enactment to benefits of any description, or to sums paid or payable, under the Teachers (Superannuation) Acts 1918 to 1956, or any of those Acts, so as to include a reference to benefits of a prescribed description, or, as the case may be, to sums paid or payable, under superannuation regulations.

Section 2.

SCHEDULE 2

CONSEQUENTIAL AMENDMENTS

PART I

1925 c. 59.

AMENDMENTS OF TEACHERS (SUPERANNUATION) ACT 1925

1.—(1) In section 9(1), for the words “ this Part of this Act ”, in the first place where they occur, there shall be substituted the words “ superannuation regulations within the meaning of the Teachers’

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Superannuation Act 1965", for the words "this Part of this Act applies" there shall be substituted the words "those regulations for the time being apply", and for the word "contributory", there shall be substituted the word "reckonable".

(2) After section 9(1) there shall be inserted the following subsection—

"(1A) The provisions of the preceding subsection shall have effect subject to any provisions made by superannuation regulations by virtue of paragraph 9 or paragraph 10 of Schedule 1 to the Teachers' Superannuation Act 1965."

2.—(1) In section 10, in subsection (1), for the word "contributory" there shall be substituted the word "reckonable".

(2) In subsection (2) of that section, for the words "this Part of this Act" there shall be substituted the words "superannuation regulations within the meaning of the Teachers' Superannuation Act 1965", for the words "recognised or contributory" there shall be substituted the word "reckonable" and for the words "five years", in each place where they occur, there shall be substituted the words "three years".

(3) After section 10(2) there shall be inserted the following subsection—

"(2A) The preceding provisions of this section shall have effect subject to any provisions made by superannuation regulations by virtue of paragraph 9 or paragraph 10 of Schedule 1 to the Teachers' Superannuation Act 1965."

3. In section 15(1), after the words "this Act", in the last place where they occur, there shall be inserted the words "and under the Teachers' Superannuation Act 1965 and superannuation regulations made under that Act, other than regulations making any such provision as is referred to in section 3 thereof".

4. In Schedule 2, in paragraph 2(a), for the words "teachers' contributions" there shall be substituted the words "superannuation contributions, within the meaning of the Teachers' Superannuation Act 1965, paid by teachers which are".

PART II

AMENDMENTS OF TEACHERS (SUPERANNUATION) ACT 1956

1956 c. 53.

5. In section 3(2), for the words "Part II" there shall be substituted the words "section 9".

6.—(1) In section 4, in subsection (1), for the word "contributory", in the first place where it occurs, there shall be substituted the word "reckonable", for the words "or contributory" there shall be substituted the words "contributory or reckonable", and for the words from "Part II" to "applies" there shall be substituted the words "superannuation regulations under the Teachers' Superannuation Act 1965 from time to time apply".

(2) In subsection (2) of that section for the words "Part II of that Act applies" there shall be substituted the words "any such superannuation regulations apply".

Sections 2, 8.

SCHEDULE 3

ENACTMENTS REPEALED

PART I

ENACTMENTS REPEALED FROM PASSING OF ACT

Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 5. c. 59.	The Teachers (Superannuation) Act 1925.	In Schedule 1, paragraph 11.
4 & 5 Eliz. 2. c. 53.	The Teachers (Superannuation) Act 1956.	Section 8.

PART II

ENACTMENTS REPEALED AS FROM APPOINTED DAY

Chapter	Short Title	Extent of Repeal
8 & 9 Geo. 5. c. 55.	The School Teachers (Superannuation) Act 1918.	The whole Act.
12 & 13 Geo. 5. c. 42.	The School Teachers (Superannuation) Act 1922.	The whole Act.
15 & 16 Geo. 5. c. 59.	The Teachers (Superannuation) Act 1925.	Sections 1 to 8. Section 10(3). Sections 12 to 14. Sections 16 to 21. In section 23(4), the words from "and the School" to the end of the subsection. Schedule 1, except paragraph 11.
19 & 20 Geo. 5. c. 17.	The Local Government Act 1929.	In Schedule 10, paragraph 19.
25 & 26 Geo. 5. c. 35.	The Teachers (Superannuation) Act 1935.	The whole Act.
1 Edw. 8 & 1 Geo. 6. c. 47.	The Teachers (Superannuation) Act 1937.	The whole Act.
2 & 3 Geo. 6. c. 95.	The Teachers Superannuation (War Service) Act 1939.	The whole Act.
8 & 9 Geo. 6. c. 14.	The Teachers (Superannuation) Act 1945.	Sections 1 to 6. Sections 8 and 9. In section 11, subsections (1) to (5). Sections 12 and 13. Section 14(2). Schedule 1. Schedule 2, except in so far as it amends sections 9 and 10 of the Teachers (Superannuation) Act 1925.
9 & 10 Geo. 6. c. 60.	The Superannuation Act 1946.	In section 6, subsections (1) and (4). Section 10(2).

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Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6. c. 33.	The Superannuation (Miscellaneous Provisions) Act 1948.	Sections 8 to 12. Part II of the Schedule.
4 & 5 Eliz. 2. c. 53.	The Teachers (Superannuation) Act 1956.	In section 2, subsections (3) and (4). Section 3(4). Sections 5 to 7. Sections 9 to 23. Section 25. In section 26(2), the definitions of "the principal Acts" and "teacher". In section 40, the words "the Teachers (Superannuation) Acts 1918 to 1946". Section 41(2). In Schedule 1, the entries relating to the School Teachers (Superannuation) Act 1918, the Teachers (Superannuation) Act 1925 and the Teachers (Superannuation) Act 1937. Schedule 2.
6 & 7 Eliz. 2. c. 14.	The Overseas Service Act 1958.	In section 3, subsections (4) and (5).
6 & 7 Eliz. 2. c. 55.	The Local Government Act 1958.	In Schedule 8, paragraphs 1 and 17.
7 & 8 Eliz. 2. c. 72.	The Mental Health Act 1959.	In Part I of Schedule 7, the entry relating to the Teachers (Superannuation) Act 1945.
10 & 11 Eliz. 2. c. 23.	The South Africa Act 1962.	In Schedule 3, in paragraph 10(1), the words "section eleven of the Superannuation (Miscellaneous Provisions) Act 1948 and", and in paragraph 10(2) the words "section thirteen of the Teachers (Superannuation) Act 1925, or" and the words "as the case may be".
1965 c. 32.	The Administration of Estates (Small Payments) Act 1965.	In Part I of Schedule 1, the reference to section 8 of the School Teachers (Superannuation) Act 1918 and the reference to paragraph 8 of Schedule 1 to the Teachers (Superannuation) Act 1925.
1965 c. 83.	The Teachers' Superannuation Act 1965.	Section 4.